

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 707

BY BUSINESS COMMITTEE

AN ACT

RELATING TO PLATS AND VACATIONS; PROVIDING LEGISLATIVE INTENT; AMENDING CHAPTER 13, TITLE 50, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 50-1335, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING AN ADMINISTRATIVE PROCESS FOR THE DIVISION OF LAND; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE INTENT. It is the intent of the Legislature to permit homeowners, builders, and lenders to separate ownership or financing of land containing an approved or existing accessory dwelling unit or similar secondary structure without requiring a full subdivision process and to allow individuals to more easily split lots so that mortgages or financing can be accessed. It is the intent of the Legislature to resolve financing barriers for permitted alternative accessory dwelling units and secondary dwellings. It is not the intent of the Legislature to facilitate outward development, subdivisions by another name, or agricultural land fragmentation.

SECTION 2. That Chapter 13, Title 50, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 50-1335, Idaho Code, and to read as follows:

50-1335. DIVISION OF LAND -- ADMINISTRATIVE PROCESS. (1) Notwithstanding any other provision of this chapter to the contrary, cities or counties may establish an administrative process for land division, which shall not be subject to subdivision platting requirements, for the purpose of facilitating a mortgage or financing division of land that contains an existing or approved accessory dwelling unit or secondary residential structure. The need for a mortgage or financing division of land shall be evidenced by a letter from a lender or mortgage underwriter demonstrating that parcel separation is required for financing. Such process may be used if:

(a) The division is solely for mortgage or financing purposes and does not create additional residential entitlements or increase allowable density beyond what is permitted by applicable zoning regulations;

(b) The division does not authorize additional dwelling units or further land divisions on either parcel created by the division and the division attaches to the original parcel and runs with the land; and

(c) Each resulting parcel has adequate legal access and utility service in accordance with applicable local standards.

(2) Nothing in this section shall be construed to permit serial or recursive division through conveyance, reconfiguration, or recombination and re-split methods.

1 (3) Divisions made pursuant to the process provided in this section
2 shall be recorded with the county recorder and shall include a declaration
3 restricting further division or development inconsistent with this section.

4 (4) Nothing in this section shall be construed to alter or supersede
5 agricultural protections provided for bona fide divisions of agricultural
6 land under this chapter or to authorize the creation of new building lots in
7 violation of local zoning or density standards.

8 SECTION 3. An emergency existing therefor, which emergency is hereby
9 declared to exist, this act shall be in full force and effect on and after
10 July 1, 2026.